

Shahnaj Begum v. U.P. Electricity Regulatory Commission

Allahabad High Court · Division Bench · 25 November 2025 · Writ-C No. 41469 of 2025 · **Writ petition dismissed as barred by constructive res judicata.**

HEADNOTE

A successive writ seeking reduction of sanctioned load from 32 kVA to 5 kVA and a declaration that clause 4.41(a)(iv) of the U.P. Electricity Supply Code, 2005 is arbitrary is not maintainable after an earlier writ for the same load reduction was dismissed; grounds now raised could have been taken then and are barred by constructive res judicata.

FACTUAL SUMMARY

The petitioner had earlier filed Writ-C No. 27946 of 2025 seeking reduction of sanctioned load from 32 kVA to 5 kVA under clause 4.41(a) of the U.P. Electricity Supply Code, 2005 and deletion of excess-load penalty. That writ was dismissed on 26 August 2025 because of outstanding dues on theft and consumption. She then sought a declaration that clause 4.41(a)(iv) is arbitrary and mandamus to reduce load without depositing the theft assessment still pending before the Special Court under section 154(5) of the Electricity Act, 2003.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.41(a)(iv)

load reduction

HOLDING

A successive writ seeking reduction of load under clause 4.41(a) of the U.P. Electricity Supply Code, 2005, and a declaration that clause 4.41(a)(iv) (latest bill to be paid in full) is arbitrary, is not maintainable where an earlier writ for the same reduction was dismissed; pleas now raised could have been taken in that petition and are barred by constructive res judicata. ¶ 7-10

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.41(A)(IV) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 IS ARBITRARY, AND WHETHER LOAD MAY BE REDUCED WITHOUT DEPOSITING THEFT ASSESSMENT PENDING SPECIAL COURT ADJUDICATION UNDER SECTION 154(5) OF THE ELECTRICITY ACT, 2003

Left untouched; petition dismissed as a successive writ on the same cause of action. ¶ 7-10